

Roop Narain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 July 2013 · Writ-C No. 37563 of 2013 · **Writ dismissed; petitioner relegated to clause 6.5 complaint.**

HEADNOTE

A writ seeking quashing of an electricity bill is not entertained where a statutory complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 is available.

FACTUAL SUMMARY

Roop Narain filed Writ-C No. 37563 of 2013 in the Allahabad High Court praying that an electricity bill dated 27 February 2013 be quashed. He was aggrieved by that bill, issued by respondent no. 2. The State was represented by the Chief Standing Counsel and the electricity respondents by Dr. S.K. Yadav; Sri A.L. Yadav appeared at the hearing. The Division Bench heard the petition on 15 July 2013.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

electricity bill — statutory complaint under clause 6.5

HOLDING

Where a consumer seeks quashing of an electricity bill, the available statutory remedy is a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005, and the High Court will not entertain a writ petition in the face of that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking quashing of an electricity bill is not entertained where a statutory complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 is available. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ELECTRICITY BILL DATED 27 FEBRUARY 2013

Left to the clause 6.5 complaint forum. ¶ 1